

PUBLICATIONS DE LA COUR PERMANENTE DE JUSTICE
INTERNATIONALE

SÉRIE B — N° 18

Le 26 août 1930

RECUEIL DES AVIS CONSULTATIFS

LA VILLE LIBRE DE DANTZIG ET
L'ORGANISATION INTERNATIONALE
DU TRAVAIL

PUBLICATIONS OF THE PERMANENT COURT
OF INTERNATIONAL JUSTICE.

SERIES B.—No. 18

August 26th, 1930

COLLECTION OF ADVISORY OPINIONS

FREE CITY OF DANZIG
AND INTERNATIONAL LABOUR
ORGANIZATION

LEYDE
SOCIÉTÉ D'ÉDITIONS
A. W. SIJTHOFF
1930



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1930

PERMANENT COURT OF INTERNATIONAL JUSTICE

EIGHTEENTH (ORDINARY) SESSION

1930.
August 26th.
File F. c. XX.
Docket XVIII. 2.

Present :

MM. ANZILOTTI, *President*,
HUBER, *Vice-President*,
LODER,
NYHOLM,
DE BUSTAMANTE,
ALTAMIRA,
ODA,
FROMAGEOT,
Sir CECIL HURST,
M. YOVANOVITCH, *Deputy-Judge*.

} *Judges,*

ADVISORY OPINION No. 18.

FREE CITY OF DANZIG
AND INTERNATIONAL LABOUR ORGANIZATION.

On May 15th, 1930, the Council of the League of Nations adopted the following Resolution :

"The Council of the League of Nations has the honour to request the Permanent Court of International Justice, in accordance with Article 14 of the Covenant, to give an advisory opinion upon the following question :

'Is the special legal status of the Free City of Danzig such as to enable the Free City to become a Member of the International Labour Organization ?'

The Council authorizes the Secretary-General to submit the present request to the Court, to give all assistance necessary in the examination of the question and, if necessary, to take steps to be represented before the Court.

The International Labour Office is requested to afford the Court all the assistance which it may require in the consideration of the question hereby submitted."

In pursuance of this Resolution, the Secretary-General submitted to the Court, also on May 15th, a Request for an advisory opinion in the following terms:

"The Secretary-General of the League of Nations, in pursuance of the Council Resolution of May 15th, 1930, and in virtue of the authorization given by the Council,

has the honour to submit to the Permanent Court of International Justice an application requesting the Court, in accordance with Article 14 of the Covenant, to give an advisory opinion to the Council on the question which is referred to the Court by the Resolution of May 15th, 1930 (see attached text).

The Secretary-General will be prepared to furnish any assistance which the Court may require in the examination of this matter, and will, if necessary, arrange to be represented before the Court."

The Request was accompanied by the text of the report upon which the Council adopted its Resolution above mentioned.

Subsequently, the Secretary-General also sent the minutes of the meeting at which this Resolution was adopted, and further—at the request of the Director of the International Labour Office—the text of the documents in the possession of that Office concerning the desire of the Free City to become a Member of the International Labour Organization, namely: two memorials emanating from the Danzig Senate; two letters from the Polish member of the Governing Body of the International Labour Office to the Director of the Office, and extracts from the minutes of two meetings of the Governing Body.

In conformity with Article 73, No. 1, paragraph 1, of the Rules of Court, the Request was communicated to the Members of the League of Nations and to States entitled to appear before the Court. The Registrar further sent to the Senate of Danzig, to the Polish Government and to the Director of the International Labour Office, which were regarded by the

President of the Court—the latter not being in session—as likely, in accordance with the terms of Article 73, No. 1, paragraph 2, of the Rules, to be able to furnish information on the question in regard to which the Court's opinion was sought, a special and direct communication informing them that the Court was prepared to receive from them written statements and, if desired, to hear oral statements made on their behalf at a public hearing to be held for this purpose.

The Registrar also addressed, on May 28th, 1930, to all States or Members of the League stated by the Director of the International Labour Office to be, at that date, Members of the International Labour Organization, a communication drawing their attention to their rights under Article 73, No. 1, paragraph 3, of the Rules of Court¹.

By an order made on May 19th, 1930, the President of the Court fixed Monday, June 30th, 1930, as the date by which written statements, if any, were to be filed with the Registry of the Court; at the request of the Free City of Danzig, this time was extended, by means of an order dated June 28th, 1930, until Thursday, July 10th, 1930. By that date, written statements had been deposited with the Registry on behalf of the Senate of the Free City, of the Polish Government and of the International Labour Office.

The Court, in the course of public sittings held on August 4th, 5th, 6th and 7th, heard the oral arguments of M. Kaufmann on behalf of the Danzig Senate, M. Rundstein on behalf of the Polish Government, and MM. Albert Thomas and Morellet on behalf of the International Labour Office.

In addition to the statements and observations of the Governments and Organization concerned, and to the documents transmitted by the Secretary-General of the League of Nations, as mentioned above, the Court has had before it the collection of documents relating to the preparation of the Convention concluded between the Free City and Poland

¹ "Should any State or Member referred to in the first paragraph have failed to receive the communication specified above, such State or Member may express a desire to submit a written statement, or to be heard; and the Court will decide."

on November 9th, 1920, the collection of international agreements concluded by or on behalf of the Free City, and lastly the collection of decisions rendered by the High Commissioner of the League of Nations at Danzig.

I.

The above-mentioned Request for an advisory opinion was submitted to the Court in the following circumstances :

As early as the first half of 1929, the Senate of the Free City of Danzig would seem to have taken steps with a view to the admission of the Free City as a Member of the International Labour Organization.

In fact, the documents submitted to the Court include a memorial dated May 11th, 1929, emanating from the Danzig Senate and purporting to set forth the considerations which actuated the Senate in taking certain steps—to which reference is made—with a view to obtaining membership of the International Labour Organization. These considerations were, in the first place, its wish to adhere to certain agreements prepared by International Labour Conferences, and in the second place its conviction that unless the Free City were a Member of the Organization, if it did so adhere, the effect of such adhesion would be merely that of a Danzig local legislative measure.

However that may be, by a letter dated January 20th, 1930, the Polish member of the Governing Body of the International Labour Office requested the Director of the Office to place on the agenda for the forty-seventh Session of the Governing Body an item concerning the “request of the Free City of Danzig to be allowed to adhere to the International Labour Organization”; to this letter the Danzig memorandum of May 11th, 1929, was attached.

By a further letter, dated March 27th, 1930, the Polish member sent the Director a further memorial by the Senate of the Free City, dated March 15th, 1930, setting forth the legal grounds on which the Free City based its request for admission.

In his two letters, the Polish member reserved the right to submit to the Governing Body a detailed statement of the question at issue, or to give his opinion on the contentions set forth in the memorials filed on behalf of the Free City.

The request of Danzig was duly placed on the agenda for the forty-seventh Session of the Governing Body, and the matter came up for discussion there on February 3rd, 1930. On that occasion it was understood that a legal memorandum on the question of the admission of the Free City of Danzig would be submitted by the Office to the Governing Body at its forty-eighth Session.

This memorandum has been communicated to the Court by the Polish Government; subsequently, the Director of the International Labour Office, being apprised of this fact, filed with the Court an extract from a letter which he had received from the German member of the Governing Body and in which certain reservations and observations were made in respect of the contents and conclusions of the memorandum emanating from the International Labour Office.

The Labour Office memorandum submitted that the question whether, from the legal point of view, the Free City possessed the capacity to become a Member of the Labour Organization should be referred to the Court, which alone was capable of solving the difficult legal problem involved. It was also submitted that this course could be adopted in view of the wide terms of Article 423 of the Versailles Treaty, and that the precise terms of the question to be placed before the Court might be as follows:

“Is the special legal status of the Free City of Danzig such as to enable the Free City to become a Member of the International Labour Organization?”

The matter again came before the Governing Body of the International Labour Office at its forty-eighth Session, and, on April 26th, 1930, it decided, after a discussion—no member voting against the motion—to cause the question set forth in the Labour Office memorandum to be submitted to the Court for an advisory opinion.

Accordingly, the Director of the International Labour Office sent to the Secretary-General of the League of Nations the

same day a letter in which, after stating that the Governing Body "had unanimously decided, in conformity with Article 423 of the Treaty of Versailles", to submit to the Court the question reproduced above, the Director requested the Secretary-General to bring the decision of the Governing Body before the Council of the League of Nations with a view to obtaining from the Court an advisory opinion on the question above quoted.

The Council of the League of Nations dealt with the matter during its fifty-ninth Session and adopted, on May 15th, 1930—the President of the Danzig Senate, the High Commissioner of the League at Danzig and the Director of the International Labour Office having been invited to take their places at the Council table—the Resolution reproduced at the outset of this Opinion.

II.

Attention must first be drawn to two points in connection with the wording of the question upon which the Court is asked to give an advisory opinion.

Firstly, it is the special legal status of the Free City of Danzig upon which the stress is laid. It is the effect which that special legal status may have upon the admissibility of the Free City to the Labour Organization which is the subject of the question. The Court has therefore concluded that it is only difficulties arising from circumstances which are peculiar to the status of the Free City that it is asked to take into consideration.

Secondly, the question is so worded as to ask only whether the Free City can *become* a Member of the Labour Organization. The Court has assumed that it is not intended thereby to limit the question to that of the admissibility of the Free City to the Organization, but to include the question whether the Free City, if admitted, could participate in the activities of the Labour Organization and fulfil the duties incumbent upon its Members.

The International Labour Organization was established by Part XIII of the Treaty of Versailles of June 28th, 1919. It

is in that part of the Treaty that one would, therefore, expect to find the rules regulating the admission of Members to the Organization and prescribing the qualification for membership. The only provision however connected with the admission and qualification of Members is the second paragraph of Article 387, which reads as follows:

“The original Members of the League of Nations shall be the original Members of this Organization, and hereafter membership of the League of Nations shall carry with it membership of the said Organization.”

It is not impossible that the intention of the Parties to the Treaty of Versailles was that membership of the League of Nations and membership of the Labour Organization should coincide, and that no State or community should be a Member of the Labour Organization unless it was also a Member of the League. This question, however, is not one which is connected with the special legal status of Danzig. It has not been dealt with in the written statements nor in the oral arguments addressed to the Court, and therefore the Court has not taken it into consideration for the reasons given above. The case has been considered solely from the point of view of whether the special legal status of the Free City is compatible with membership of the Labour Organization. But the fact that the Court has given its answer to the question upon this basis must not be taken as prejudging in any way its opinion upon the larger question, if at any time that question should be put to it.

The Free City of Danzig came into being as a result of the peace settlement effected by the Treaty of Versailles.

By Article 102, the Principal Allied and Associated Powers agreed to establish the territory there defined as a Free City, and declared that it was to be placed under the protection of the League of Nations.

By Article 103, provision was made for the elaboration of a constitution for the Free City in agreement with a High Commissioner to be appointed by the League. This constitution was to be placed under the guarantee of the League.

By Article 104, the Principal Allied and Associated Powers pledged themselves to negotiate a treaty, to which Poland

and the Free City were to be the Parties, and which was to come into force simultaneously with the establishment of the Free City, for the purpose of securing to Poland certain rights, mainly of an economic character, within the territory of the Free City. Paragraph (6) of this article stated that the treaty was to provide that the Government of Poland should undertake the conduct of the foreign relations of the Free City.

The Treaty referred to in Article 104 was in fact concluded between Poland and Danzig and is dated November 9th, 1920. It is known as the Treaty or Convention of Paris. Its provisions repeat and amplify in some respects the stipulations of Article 104 of the Treaty of Versailles; but, so far as concerns provisions which are to be found in both Treaties, their repetition in the Treaty of Paris does not vary the fact that the Treaty of Versailles is the source of the rights conferred on Poland in accordance with Article 104, nor does it alter the fact that, so far as these rights involve a limitation on the independence of the Free City, they constitute organic limitations which are an essential feature of its political structure.

The special juridical status of the Free City is seen from the above to comprise two elements: the special relation to the League of Nations, by reason of its being placed under the protection of the League and by reason of the guarantee of the constitution, and the special relation to Poland, by reason of the conduct of the foreign relations of the Free City being entrusted to the Polish Government.

The Principal Allied and Associated Powers carried out their mandate under Article 102 of the Treaty of Versailles and constituted the Free City of Danzig, "on the terms and conditions laid down in the said Treaty", by a decision which was dated October 27th and was to come into force on November 15th, 1920; it was accepted by the representatives of Danzig on November 9th.

The constitution of the Free City had meanwhile been elaborated by a Constituent Assembly in agreement with the High Commissioner of the League, and on November 17th of the same year a decision was taken by the Council of the League placing the Free City under the protection of the

League and giving the guarantee of the League to its constitution, as provided in Articles 102 and 103 of the Treaty of Versailles. At the same time, the Council directed certain amendments to be introduced into the constitution, in order to make it plain that the provisions of the constitution did not override the right of Poland, under Article 104 (6) of the Treaty of Versailles, to conduct the foreign relations of the Free City.

The precise scope of the protection of the Free City by the League and of the guarantee of its constitution have not been exhaustively defined.

The general effect of the reports and resolutions adopted by the Council of the League, such as those of November 17th, 1920, and March 2nd, 1921, is to show that the duty of the League is to ensure the continued existence of the Free City on the footing on which it was established in accordance with the Treaty of Versailles, and that it was in order to enable the League to achieve this purpose that the Free City was placed under its protection and the constitution placed under its guarantee. Accordingly, the Council has declared that it is bound to ensure orderly, peaceful and stable government at Danzig, to protect it from outside aggression and to see that without the consent of the League no fundamental change is made in the Treaty of Paris, nor any change in the constitution of the Free City. The protection of the Free City and the guarantee of its constitution would justify such claims. They would not prevent the Free City from becoming a Member of the Labour Organization.

No detailed stipulations were inserted in the Treaty of Paris regulating the conduct by the Polish Government of the foreign relations of the Free City. The principle laid down in Article 104 (6) of the Treaty of Versailles was repeated. In consequence, many differences of opinion as to foreign affairs arose between Poland and the Free City, but a practice, which seems now to be well understood by both Parties, has gradually emerged from the decisions of the High Commissioner and from the subsequent understandings

and agreements arrived at between the Parties under the auspices of the League.

It is now common ground between Poland and the Free City that the rights of Poland as regards the conduct of the foreign relations of the Free City are not absolute. The Polish Government is not entitled to impose a policy on the Free City nor to take any step in connection with the foreign relations of the Free City, against its will.

On the other hand, the Free City cannot call upon Poland to take any step in connection with the foreign relations of the Free City which are opposed to her own policy. As the High Commissioner said in his decision of December 17th, 1921, if Poland were obliged to do so, she would come under the domination of the Free City, and this was certainly not contemplated by the Treaty of Versailles.

The result is that, as regards the foreign relations of the Free City, neither Poland nor the Free City are completely masters of the situation. The Free City is entitled to care for her own interests and to see that nothing is done which is prejudicial to them. Poland is entitled to care for her own interests and to refuse to take any action which would be prejudicial to them.

Other decisions of the High Commissioner and agreements between Poland and the Free City have regulated the representation of the Free City at international conferences and the manner in which correspondence between the Free City and foreign States is to be conducted. It has also been agreed that where, with the concurrence of the Polish Government, the Free City has become a Party to a convention which provides for direct correspondence or intercourse between the technical organizations of the contracting States, the Polish concurrence in the Free City becoming a Party to the convention implies Polish consent to direct communication between the technical organizations of the Free City and those of other States.

The way in which the International Labour Organization carries on its work has been explained to the Court in broad

outline in the written Statement filed by the International Labour Office and in the oral argument of the Director. It is clear that the activities of the Labour Organization cover a wide field, and that the lines on which they are carried on are novel in character.

The nomination of delegates to a Labour Conference, the way in which such delegates vote at a Conference, the method by which majority decisions of a Conference are embodied in recommendations or draft conventions, the duty imposed on Members to submit such draft conventions to the "competent authorities" of their country and to ratify the draft conventions if they are approved by these "competent authorities", the method by which failure to observe the provisions of a convention can be made the subject of representations or complaints, of enquiry by a commission, of legal proceedings and of sanctions, all present features which differ from the proceedings of the ordinary diplomatic conference, from the way in which conventions drawn up at such conferences are brought into force and from the method by which a contracting Party to any such convention can secure redress if his interests are prejudiced by a violation of its terms by another Party.

The arrangements now in force as to the representation of the Free City at international conferences, as to the conduct of correspondence and as to direct contact between technical organizations in the Free City and in other States, show that at the time when these decisions of the High Commissioner were given, or when the subsequent agreements were concluded, neither Party had in view the participation of the Free City in the work of the Labour Organization. These arrangements could not as they stand be made applicable to any such participation, and they cannot be regarded as applying to the circumstances which would arise if the Free City were admitted to the Labour Organization.

The question whether the special juridical status of the Free City is compatible with membership of the Labour Organization

must, therefore, be considered without reference to the above arrangements, and must be dealt with on the footing that, as the result of the Treaty of Versailles, the conduct of the foreign relations of the Free City is entrusted to the Government of Poland, and that in consequence the Free City is not in a position to oblige the Polish Government to take any action in the conduct of those foreign relations which is contrary to the interests of Poland herself.

It is unnecessary for the Court, even if it were in a position to do so, to make an exhaustive analysis of the various activities of the Labour Organization in order to determine which of them fall within the category of foreign relations. A proportion may be assumed to fall wholly within the domestic sphere, but it is impossible to avoid the conclusion that some of the steps which a Member of the Labour Organization would take—some even which it might be bound to take—in pursuing the normal activities of membership would fall within the sphere of foreign relations. Such acts as the ratification of a draft convention or the filing of a complaint against another Member State for failure to observe the provisions of a convention must clearly belong to the field of foreign relations. The Free City as a Member of the Labour Organization could not take any such steps itself. It would be obliged to use the Polish Government as its intermediary, and therefore in all such cases Polish consent would be necessary, because the Polish Government would be entitled to refuse to take these steps on behalf of the Free City if they were prejudicial to important interests of the Polish State.

The Court has not found any provision in Part XIII which absolves a Member of the Labour Organization from complying with the obligations of membership or excuses it from participating in the normal activities of the Organization if it cannot first obtain the consent of some other Member of the Organization. Apart therefore from any such possible difficulties as those referred to at the beginning of this Opinion,

the Court considers that the Free City of Danzig could not participate in the work of the Labour Organization until some arrangement had been made ensuring in advance that no objection could be made by the Polish Government to any action which the Free City might desire to take as a Member of that Organization.

If such an agreement were concluded between Poland and the Free City of Danzig, the fact that the conduct of the foreign relations of the Free City is entrusted to the Polish Government would not constitute an obstacle to the Free City becoming a Member of the Labour Organization.

It is not for the Court to indicate the provisions which should be inserted in any such agreement, but it is necessary to point out that, if the agreement involved any modification of the special legal status of the Free City, it might be subject to a veto under Article 6 (2) of the Treaty of Paris, and therefore it might be desirable that it should not be concluded without the concurrence of the Council of the League.

No such agreement exists at the present moment, and the Court feels bound to answer the question upon which it is asked to give an advisory opinion on the basis of the existing situation.

FOR THESE REASONS,

The Court,

by six votes to four,

is of opinion

that the special legal status of the Free City of Danzig is not such as to enable it to become a Member of the International Labour Organization.

Done in English and in French, the English text being authoritative, at the Peace Palace, The Hague, this twenty-sixth day of August, nineteen hundred and thirty, in two copies, one of which is to be deposited in the archives of the

Court, and the other to be forwarded to the Council of the League of Nations.

(Signed) D. ANZILOTTI,
President.

(Signed) Å. HAMMARSKJÖLD,
Registrar.

MM. Anzilotti, President, and Huber, Vice-President, declaring themselves unable to concur in the Court's opinion, and availing themselves of the right conferred by Article 71 of the Rules of Court, have delivered the separate opinions which follow.

M. Loder, former President, availing himself of the right conferred by Article 71 of the Rules of Court, has attached to the opinion this statement of his dissent.

(Initialled) D. A.

(Initialled) Å. H.
